



CHAPTER lxxviii.

An Act to authorise the construction of street works the deviation of a railway and the closing of part of a canal in the county borough of Newport to authorise the mayor aldermen and burgesses of the borough to provide and work trolley vehicles to make further provision for the finance of the borough and for other purposes. A.D. 1930.
[4th June 1930.]

WHEREAS the county borough of Newport in the county of Monmouth is a municipal borough subject to the Acts relating to municipal corporations and under the government of the mayor aldermen and burgesses thereof (hereinafter called "the Corporation") and is a county borough within the meaning of the Local Government Act 1888:

And whereas it is expedient to empower the Corporation to construct street works and to acquire lands for those purposes and for other purposes as in this Act mentioned:

And whereas the Great Western Railway Company are the owners of the Monmouthshire Canal and of the railways known as the Monmouthshire (Eastern Valleys) Railway and the Monmouthshire (Western Valleys) Railway:

And whereas it would be a public and local convenience and would facilitate the construction of the new road by this Act authorised and the improvement and

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A.D. 1930. — development of the borough if the portion of the said canal at the southern end thereof within the borough were closed and portions of the said railways were deviated or abandoned as by this Act authorised and if parts of the sites of the said portions of railways when so abandoned were authorised to be used for the purposes of the said new road and for other purposes of this Act and of the Public Health Acts :

And whereas the said railway company have agreed to the transfer to and vesting in the Corporation of parts of the sites aforesaid on the terms and conditions contained in an agreement a copy of which is set forth in the First Schedule to this Act :

And whereas it is expedient to empower the Corporation to provide and work vehicles adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source (in this Act referred to as “ trolley vehicles ”) along the routes of certain of the tramways of the Corporation and other routes in this Act mentioned and to confer upon the Corporation all necessary and convenient powers with regard thereto :

And whereas it is expedient that further and better provision be made with reference to the finance of the borough and that the powers of the Corporation in relation thereto be enlarged and extended :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

(a) For the purchase of lands for and in connection with the deviation of railway and for the construction of the deviation of railway	£ 17,500
(b) For the purchase of lands for and in connection with the street works	98,000
(c) For the purchase of the lands (c) described in the section of this Act of which the marginal note is “ Power to acquire lands ”	225
(d) For the construction of street works and works connected therewith	148,400

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	£	A.D. 1930.
(e) For the purchase of trolley vehicles -	28,000	—
(f) For the provision of electrical equipment and the construction of other works necessary for working trolley vehicles - - - - -	18,500	
(g) For the construction of buildings and conveniences and other purposes in connection with the new terminus and turning point on the said lands (c) - - - - -	1,000	

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Ministry of Health has been obtained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act the plans showing also the lands liable to be taken compulsorily under the powers of this Act and a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Monmouth and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Newport Corporation (No. 1) Act 1930. Short title,

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—
Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Street works.

Part III.—Closing of canal and deviation of
railway.

Part IV.—Lands.

Part V.—Trolley vehicles.

Part VI.—Finance.

Part VII.—Miscellaneous.

Incorporation of
Lands
Clauses
Acts.

3. The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) are so far as applicable for the purposes and not inconsistent with the provisions of this Act hereby incorporated with this Act. Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation.

4.—(1) The several words and expressions to which by the Public Health Act 1875 or the Lands Clauses Acts meanings are assigned shall in this Act (except where otherwise expressly provided) have the same respective meanings unless there is something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The borough ” means the county borough of Newport;

“ The Corporation ” means the mayor aldermen and burgesses of the borough;

“ The council ” means the council of the borough;

“ The town clerk ” and “ the treasurer ” mean respectively the town clerk and the treasurer of the borough and respectively include any person duly appointed by the Corporation to discharge temporarily the duties of any such officer;

“ The general rate ” and “ the general rate fund ” mean respectively the general rate and the general rate fund of the borough;

“ The railway company ” means the Great Western Railway Company; A.D. 1930.

“ The Act of 1888 ” means the Newport (Monmouthshire) Corporation Water Act 1888;

“ The Act of 1889 ” means the Newport (Monmouthshire) Corporation Act 1889;

“ The Act of 1892 ” “ the Act of 1897 ” “ the Act of 1900 ” “ the Act of 1902 ” “ the Act of 1906 ” “ the Act of 1914 ” and “ the Act of 1925 ” respectively mean the Newport Corporation Acts of those respective years;

“ The Order of 1917 ” means the Newport Light Railway Order 1917;

“ The Public Health Acts ” mean the Public Health Act 1875 and the Acts amending and extending that Act;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“ The street works ” means the works authorised by the section of this Act of which the marginal note is “ Power to construct street works ”;

“ The tramways ” means the tramways for the time being belonging to the Corporation;

“ Trolley vehicle ” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by power transmitted thereto from some external source;

“ The trolley vehicles ” means the trolley vehicles worked and run by the Corporation under the powers of this Act;

“ Trolley vehicle route ” means a route upon which the Corporation are by this Act or by an Order under the section of this Act the marginal note whereof is “ Minister may authorise new routes ” authorised to work and use trolley vehicles;

“ The tramways undertaking ” means the tramway trolley vehicle and omnibus undertaking of the Corporation as from time to time authorised;

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- “ Road ” means any public highway for carriages and includes the whole width of such a highway whether a carriageway or not and any waste land forming part of the highway;
- “ The tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;
- “ The Minister ” means in Parts III and V of this Act the Minister of Transport and elsewhere the Minister of Health;
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ Daily penalty ” means a penalty for each day on which an offence is continued after conviction;
- “ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“ Revenues of the Corporation ” includes the A.D. 1930.
revenues of the Corporation from time to time
arising from any land undertaking or other
property for the time being of the Corporation
and the rates or contributions leviable by or on
the order or precept of the Corporation.

PART II.

STREET WORKS.

5. Subject to the provisions of this Act the Corpora- Power to
tion may in the lines and situations and according to the construct
levels shown on the deposited plans and sections make street
and maintain the following street works in the borough works.
(that is to say):—

Work No. 1 A widening of Chepstow Road on its
southern side from the borough boundary to
Acacia Avenue;

Work No. 2 A widening of Chepstow Road on its
southern side from Hawthorn Avenue to a point
about 40 yards westwards of Oxford Street;

Work No. 3 A widening of Chepstow Road on its
southern side from Livingstone Place to a point
about 50 yards westwards therefrom;

Work No. 4 A widening of Chepstow Road on its
northern side from Lawrence Hill to a point
25 yards westwards of Beechwood Road;

Work No. 5 A widening of Chepstow Road on its
northern side from Tennyson Road to Eveswell
School;

Work No. 6 A widening of Chepstow Road on its
northern side from the western entrance gate of
Ffrwd Vale to the western boundary of No. 173
Chepstow Road;

Work No. 7 A widening of Chepstow Road on its
northern side from London Street to Hereford
Street;

Work No. 8 The rounding off of the corner of
Chepstow Road and Caerleon Road commencing
in Chepstow Road at the boundary wall of
No. 5 Chepstow Road and terminating at the
said boundary wall in Caerleon Road;

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Work No. 9 A new road commencing on the southern side of High Street at or near the northern end of Screw Packet Road and terminating on the northern side of Emlyn Street at a point about ten yards eastwards from Dock Street;

Work No. 10 A widening of Cardiff Road on its northern side from Waterloo Road to Clytha Square.

Power to deviate.

6. In making the street works the Corporation may deviate from the lines and positions thereof respectively shown on the deposited plans to any extent within the limits of deviation shown on those plans and from the levels thereof respectively shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

Time for completion of street works.

7. If the street works are not completed before the thirty-first day of December nineteen hundred and thirty-five then as from that date the powers by this Act granted to the Corporation for making the same or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed.

As to access to new road.

8.—(1) The Corporation may provide and maintain along both sides or either side of the whole or any part or parts of that portion of the new road (Work No. 9) by this Act authorised which will be situate between the north side of Llanarth Street and the south side of the bridge carrying High Street over the Monmouthshire (Eastern Valleys) Railway of the railway company suitable unclimbable fences of such materials and of such height as the Corporation may determine for the purpose of preventing access to such portion of the said new road or any part or parts thereof from the lands adjacent thereto.

(2) The Corporation before the said new road is opened for traffic shall cause to be erected in suitable places and to be maintained warning notices with regard to any restriction of user applicable to that road.

Application of road materials excavated

9. Any paving metalling or material excavated by the Corporation from any road under their jurisdiction and control in the construction of the street works and the works connected therewith by this Act authorised

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shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

—
in con-
struction
of works.

10. Subject to the provisions of this Act the following sections of the Act of 1902 shall so far as applicable extend and apply to the street works and to the Corporation with respect thereto in as full and complete a manner as if the said sections were re-enacted in this Act with the substitution of the words "street works" for the words "bridge and street widenings and improvements authorised by this Act" wherever the last-mentioned words occur in those sections.

Application
of sections
of Act of
1902 to
street
works.

The sections above referred to are—

Section 17 (Power to stop up ways during execution of works);

Section 18 (Power to make subsidiary works in connection with street works);

Section 19 (Power to alter drains pipes &c.);

Section 20 (For protection of Newport (Monmouthshire) Gas Company);

Section 21 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works).

11. The bridge to carry the new road (Work No. 9) authorised by this Part of this Act over the deviation of railway authorised by Part III of this Act shall have a clear headway of fourteen feet four and a half inches above the level of the rails of the deviation of railway as the same shall be constructed.

Headway
of road
bridge over
railway.

12. All works which the Corporation are by this Part of this Act authorised to construct and which affect the property of the railway company shall be constructed by the Corporation to the reasonable satisfaction and under the superintendence (if the same be given) of the railway company's engineer and in accordance with detailed plans drawings sections cross-sections and specifications of such works to be previously submitted to the railway company for their approval. Provided that if for twenty-one days after such submission the railway company fail to signify approval of such plans drawings sections cross-sections and specifications the said works shall (unless otherwise agreed between the

Corporation
to submit
plans &c.
of works to
railway
company.

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A.D. 1930. Corporation and the railway company) be constructed according to plans drawings sections cross-sections and specifications to be determined by arbitration in like manner as differences between the Corporation and the railway company under Part III of this Act are required to be determined.

As to
alteration
of tele-
graphic
lines,

13. Notwithstanding anything in this Part of this Act the Corporation shall not alter divert or otherwise interfere with any telegraphic line of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

As to works
of electric
under-
takers.

14. Nothing in this Part of this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

PART III.

CLOSING OF CANAL AND DEVIATION OF RAILWAY.

Railways
Clauses Acts
incorporated
with
Part III.

15. The Railways Clauses Consolidation Act 1845 and Part I (relating to the construction of a railway) of the Railways Clauses Act 1863 so far as applicable for the purposes and not inconsistent with the provisions of this Part of this Act are incorporated with and form part of this Part of this Act.

For the purposes of such incorporation the following terms and expressions in the said incorporated enactments shall have the following meanings (that is to say) :—

“ The special Act ” shall mean this Part of this Act;

“ The undertaking ” and “ the railway ” shall mean the deviation of railway and works in connection therewith by this Part of this Act authorised to be executed; and

“ The company ” shall in relation to powers exerciseable by the Corporation under this Part of this Act mean the Corporation and in relation to powers exerciseable by the railway company under this Part of this Act mean the railway company.

16. In this Part of this Act unless the subject or context otherwise requires—

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—
Special
definitions
for Part III.

“ The canal ” means the Monmouthshire Canal;

“ The northern portion of canal ” means the portion of the canal which is situate between a line drawn across the canal at right angles to the centre line of the canal and through a point on such centre line ten yards eastwards of the junction of the canal with the Crumlin branch of the canal and the point of commencement of the cast iron pipe to be constructed under article 2 of the scheduled agreement and includes all lands basins quays works and conveniences situate on or adjoining the same and forming part of the canal undertaking of the railway company;

“ The southern portion of canal ” means the portion of the canal which is situate between the northern portion of canal and the present terminus of the canal at or near the footbridge crossing the Monmouthshire (Eastern Valleys) Railway of the railway company near the north-eastern end of Llanarth Street and includes all lands basins quays works and conveniences situate on or adjoining the same and forming part of the canal undertaking of the railway company;

“ The existing railway ” means the Monmouthshire (Eastern Valleys) Railway of the railway company;

“ The deviation of railway ” means the deviation of the existing railway authorised by this Part of this Act and includes the sidings and other works in connection therewith so authorised;

“ The scheduled agreement ” means the agreement dated the third day of March nineteen hundred and thirty and made between the railway company of the one part and the Corporation of the other part and set forth in the First Schedule to this Act.

17. The railway company when required by the Corporation shall close the southern portion of canal and

Railway
company
to close

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A.D. 1930. may also at any time close the northern portion of canal
and on and from the respective dates of closing as
notified by the railway company under the section of
this Act whereof the marginal note is " Notice of closing
to be given " all public rights of way and navigation and
other rights and easements (whether public or private)
in over or relating to the southern portion of canal and
the northern portion of canal shall be respectively extin-
guished and the southern portion of canal and the
northern portion of canal shall be respectively abandoned
as a canal or navigation and the railway company and
their property and funds shall be wholly released and
discharged from all obligations and liabilities whatso-
ever (whether under any Act relating to or regulating
the canal or otherwise and whether to the public or the
owners of adjoining lands or other persons) in respect of
the southern portion of canal and the northern portion
of canal :

southern
portion of
canal and
to have
power to
close
northern
portion of
canal.

Provided that if the northern portion of canal is
closed the railway company shall before filling in any
portion thereof construct and thereafter maintain a cast
iron pipe of an internal diameter of three feet on or
under the site of the portion of canal to be filled in
together with all necessary works to preserve the flow of
water from the canal immediately above the point where
the same is filled in to the point of commencement of the
cast iron pipe to be constructed under article 2 of the
scheduled agreement :

Provided also that nothing in this section shall
interfere with or affect the rights of any person of passing
and repassing with or without vehicles of any description
over any level crossing provided by the railway com-
pany over the deviation of railway or over any part of
the canal.

Notice of
closing to
be given.

18. Not later than one month before closing the
southern portion of canal or the northern portion of
canal the railway company shall give notice fixing the
date of such closing by placards fixed at conspicuous
spots on the canal and at such other spots near the canal
as they may deem most convenient for persons interested
therein and by advertisement once at least in two suc-
cessive weeks in a newspaper or newspapers circulating
in the borough.

19. The respective sites of the southern portion of canal and the northern portion of canal shall continue vested in the railway company and may be retained held and appropriated by them for the general purposes of their undertaking or may after the respective closings thereof be sold leased or otherwise disposed of as the railway company may think fit.

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As to site of southern and northern portion of canal.

20.—(1) Notwithstanding anything in this Act or the Lands Clauses Acts or any other Act relating to the railway company or the Corporation the railway company may from time to time sell or lease to the Corporation for such consideration and on such terms and conditions as the railway company may think fit and the Corporation may acquire or take on lease the whole or any part or parts of the northern portion of canal and any interest therein or thereover.

Corporation may acquire further parts of canal.

(2) The northern portion of canal or any part or parts thereof or any interest therein or thereover which may be acquired or taken on lease by the Corporation under this section may be held and used by them for all or any of the purposes of this Act or of the Public Health Acts and the Corporation may also exercise with reference to the whole or any such part or parts of the northern portion of canal any of the rights powers or privileges conferred on the Corporation by section 12 (Power to develop lands &c.) of the Act of 1925.

21. Subject to the provisions of this Act and of the scheduled agreement the Corporation may make in the lines and according to the levels shown on the deposited plans and sections relating thereto the deviation of railway hereinafter described with all proper sidings approaches works and conveniences connected therewith The deviation of railway hereinbefore referred to and authorised by this section will be wholly situate in the borough and is—

Power to construct deviation of railway.

A deviation (2 furlongs and 7·25 chains in length) of the existing railway between a point at or near the south-eastern end of the bridge carrying High Street over that railway and a point about 5 chains south-eastwards from the foot-bridge over the railway near the north-eastern end of Llanarth Street :

Provided that the Corporation shall not construct the deviation of railway further than up to formation

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A.D. 1930. level but so soon as reasonably practicable after the completion by the Corporation of such work the railway company shall complete the deviation of railway and if required by the Corporation erect a footbridge near Llanarth Street in a position to be agreed between the railway company and the Corporation and the Corporation shall repay to the railway company all costs properly incurred by the railway company in so doing.

Power to deviate.

22. In making and completing the deviation of railway the Corporation may with the consent of the railway company deviate laterally to any extent within the limits of deviation shown on the deposited plans in relation thereto and vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards or downwards or with the like consent to such further extent as the Corporation may find necessary or convenient and as may be sanctioned by the Minister Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Deviation of railway to be vested in railway company.

23. The deviation of railway when constructed (including so much of the site thereof as is not already the property of the railway company) shall by virtue of this Act and without any deed of conveyance or other assurance become and be vested in the railway company and shall for the purposes of fares tolls rates and charges and all other purposes be deemed to form part of the existing railway.

Accommodation works.

24. Contemporaneously with the construction of the deviation of railway the railway company shall subject to the provisions of this Act construct such sidings as may be necessary between the deviation of railway and the wharves works and lands adjacent thereto now having siding connections with the existing railway in substitution for any such existing connections which may be removed or interfered with in connection with the construction of the deviation of railway and shall construct junctions or connections between such new sidings and the deviation of railway and all expenses properly incurred by the railway company under this section shall forthwith on completion be repaid to them by the Corporation on demand.

25. On the completion of the deviation of railway in accordance with the provisions of this Part of this Act and of the scheduled agreement the railway company shall and may abandon and discontinue the maintenance and use of (i) so much of the existing railway as lies between the commencement and termination of the deviation of railway and (ii) the portion of the branch railway of the Monmouthshire (Western Valleys) Railway of the railway company formerly connecting that railway with the existing railway at or near Llanarth Street lying between Dock Street and the said point of connection of the said branch railway with the existing railway and thereupon the lands forming the site of so much of the respective portions of (i) the existing railway (other than any part thereof which will form part of the deviation of railway) and (ii) of the branch railway so abandoned as will be required for the construction by the Corporation of the new road (Work No. 9) by this Act authorised and is not already the property of the Corporation shall by virtue of this Act and without any deed of conveyance or other assurance become and be vested in the Corporation and may be held and used by them for the purposes of the said new road.

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—
Abandon-
ment of
portion of
railway.

—**26.**—(1) Before any portion of the canal or of the existing railway or of the said branch railway is closed abandoned or discontinued all Post Office telegraphic lines existing on along or across any such portion as aforesaid shall if required by the Postmaster-General be removed by him at the expense of the railway company or the Corporation and placed in such substituted positions (overground or underground) as the Postmaster-General shall require and the railway company shall give reasonable notice to the Postmaster-General before closing abandoning or discontinuing any portion of the canal or of the said railways Provided that so far as the substituted telegraphic lines shall be placed underground the work shall be executed and the expense thereof shall be shared in such manner and proportions as shall be agreed between the Postmaster-General on the one hand and the railway company and the Corporation on the other hand or failing agreement settled by arbitration.

For protec-
tion of
Postmaster-
General.

(2) Any question by this section referred to arbitration shall unless otherwise agreed be referred to and

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Railway company to render facilities and grant easements to Corporation.

27.—(1) The railway company shall render to the Corporation all such facilities and assistance as the Corporation shall reasonably require in carrying out the construction of the deviation of railway and works in connection therewith required to be constructed by the Corporation and shall permit the Corporation to enter upon and use without payment such of the lands of the railway company as the Corporation may reasonably require to enter upon and use for the construction of the deviation of railway and works aforesaid.

(2) The railway company shall also grant to the Corporation such easements as may be necessary for carrying the new road (Work No. 9) by this Act authorised over the site of the southern portion of canal and of the deviation of railway and the existing railway in accordance with the deposited sections relating to that road and for maintaining and repairing such road and any bridge abutments or other works so carrying the same and such easements shall by virtue of this Act without any deed of grant or other assurance become and be vested in the Corporation and may be held and used by them for the purposes aforesaid.

Arbitration as to differences between Corporation and railway company.

28. Any difference which may arise between the Corporation and the railway company under the provisions of this Part of this Act shall (except where otherwise expressly provided) be referred to an engineer or other fit person to be agreed between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference.

Period for completion of railway.

29. If the deviation of railway is not completed before the first day of January nineteen hundred and thirty-five then as from that date the powers by this Act granted to the Corporation for making the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

30. The scheduled agreement is hereby confirmed and made binding upon the parties thereto subject to any variation that may be agreed between the parties thereto and shall (subject as aforesaid) be carried into effect accordingly.

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—
Confirma-
tion of
agreement.

31. The Corporation shall pay to the railway company the sum of four thousand three hundred and ten pounds in accordance with the terms of the scheduled agreement.

Contribution
to railway
company in
connection
with proposed
abattoir.

32. Nothing in this Part of this Act shall exempt the railway company or their railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of maximum rates of fares and charges or of the rates for small parcels made applicable by this Act.

Provisions
as to
general
Railway
Acts.

33. For the protection and benefit of the Right Honourable Ivor John Caradoc Baron Treowen or the persons deriving title under him or other the owner or owners for the time being of the Llanarth Estate (in this section referred to as "the owners") and of John Vipond and Company Limited their successors and assigns lessees of the wharf on the river Usk belonging to the said Llanarth Estate known as Vipond's Wharf (in this section referred to as "the lessees") the following provisions shall have effect (that is to say):—

For protec-
tion of
Right
Honourable
Ivor John
Caradoc
Baron
Treowen
and John
Vipond and
Company
Limited.

- (1) Nothing in this Act shall extend or be construed so as to defeat take away lessen alter impair prejudice or affect any of the rights of the owners and the lessees with regard to the supply of water to certain wharves (including the said Vipond's Wharf) belonging to or forming part of the said Llanarth Estate pursuant to an agreement dated the thirty-first day of December one thousand eight hundred and fifty-eight and made between John Arthur Herbert of the one part and the Monmouthshire Railway and Canal Company of the other part (in this section referred to as "the 1858 agreement"):

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(2) Notwithstanding anything contained in the section of this Act the marginal note of which is "Railway company to close southern portion of canal and to have power to close northern portion of canal" or in the scheduled agreement the railway company before closing the southern portion of canal and before closing the northern portion of canal shall at their own expense construct or procure the construction by the Corporation of and shall maintain all necessary and proper pipes or conduits in the bed of the portion of canal so to be closed and all necessary and proper works and any necessary and proper adaptations and alterations of and connections with works (including the works required to be constructed and maintained under subsection (2) of section 3 of the Monmouthshire Railway and Canal Act 1879 (in this section called "the Act of 1879")) so as to enable the company to convey from the canal as existing after such closing to the said wharves the supply of water to which the owners and the lessees are entitled under the 1858 agreement and section 3 of the Act of 1879. From and after such closing the company shall continue at all times to afford to the owners and the lessees the said supply of water and shall supply the water to as large an extent and in as convenient a manner as the owners lessees or occupiers of the said wharves have heretofore been entitled to:

(3) The railway company on the one hand and the owners and the lessees on the other hand may from time to time agree concerning any of the matters contained in or provided for under this section and any dispute or difference which may arise between the railway company on the one hand and the owners and the lessees or either of them on the other hand with reference to any of the matters contained in or provided for under this section shall be settled by arbitration by a single arbitrator to be agreed upon by the parties in difference or failing agreement to be appointed on the application of either of those

parties by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1930. —

34. For the protection of Courtenay Charles Evan Viscount Tredegar and his sequels in estate or other the owners or owner for the time being of the Tredegar Estate in the county of Monmouth (all of whom are in this section referred to as "Lord Tredegar") the following provisions shall unless otherwise agreed in writing between Lord Tredegar and the Corporation apply and have effect (that is to say):—

For protec-
tion of
Viscount
Tredegar.

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Corporation shall not enter upon take or use any greater part of the lands of Lord Tredegar numbered on the deposited plans 285 286 296 297 298 299 300 and 301 than may be required for the construction of any works by this Act authorised:
- (2) The Corporation shall to the reasonable satisfaction of Lord Tredegar and for all purposes in connection with any business carried on on any property of Lord Tredegar provide all necessary facilities and execute all necessary temporary works for enabling Lord Tredegar and his lessees and tenants at all times during the construction of the new road (Work No. 9) by this Act authorised and the deviation of railway to have free and uninterrupted access to and egress from the said property either by means of the existing roadways and the existing railway and sidings of the railway company or by such other substituted means as Lord Tredegar shall reasonably approve:
- (3) In order to provide for access for Lord Tredegar his lessees and tenants and their servants or workmen between the premises of Lord Tredegar known as the Baltic Wharf and the premises of Lord Tredegar in Dock Street now occupied by Nicholas and Company Limited the Corporation shall in constructing the said new road construct to the reasonable satisfaction of Lord Tredegar upon lands to be provided by Lord

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(No. 1) Act, 1930.

A.D. 1930.

Tredegar free of cost to the Corporation a suitable flight of steps leading from the said new road to the said Baltic Wharf at a point twenty-two yards or thereabouts measured in a southerly direction from the south-western corner of Screw Packet Road and a suitable flight of steps leading from the said new road to the said premises of Lord Tredegar in Dock Street at a point sixty-four yards or thereabouts measured in a north-westerly direction along the westerly side of the said new road from the point of junction therewith of the northerly side of Skinner Street. Provided that the access to be afforded by the said flights of steps shall not be used for the transit of goods wares or merchandise which shall interfere with or be likely to interfere in any way with traffic on the said new road :

- (4) If the Corporation shall enter upon take or use any of the properties numbered on the deposited plans 238 239 240 and 241 or any part of any of the said properties the Corporation shall forthwith acquire the whole of all of the said properties. Provided always that such purchase shall be deemed to be a purchase of land otherwise than by agreement within the meaning and for the purposes of the Lands Clauses Acts which shall apply accordingly :
- (5) Contemporaneously with the construction of the deviation of railway the Corporation or the railway company shall to the reasonable approval of Lord Tredegar provide and make a sufficient and proper junction between the existing rails of Lord Tredegar on the property numbered 296 on the deposited plans and the new junctions and sidings to be constructed in connection with the deviation of railway :
- (6) The Corporation shall not remove or displace or otherwise interfere with or do anything to endanger any main pipe or apparatus by means of which any supply of water is afforded to or reaches any lands of Lord Tredegar or to impede the passage of water into or through the same until good and sufficient apparatus and

other works necessary and proper for continuing the supply of water as freely and as efficiently as the same was supplied by such main pipe or apparatus shall at the expense of the Corporation have first been completed in lieu thereof to the reasonable satisfaction of Lord Tredegar :

A.D. 1930.

- (7) From and after the completion of the said new road and the deviation of railway the Corporation shall relieve Lord Tredegar of any responsibility to maintain and keep in good repair and condition the road known as Screw Packet Road and Lord Tredegar and the lessees and tenants of the said property numbered 296 on the deposited plans shall so far as the Corporation are concerned have free and unrestricted right of passage over such road to and from the said property for all purposes in connection with any business from time to time carried on on the said property :
- (8) Any question or difference arising between the Corporation and Lord Tredegar or the railway company and Lord Tredegar under the provisions of this section shall be referred to and determined by a single arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties in difference after notice in writing to the other or others of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination :
- (9) The provisions of this section shall be in addition to any other provisions of this Act or of any Acts incorporated therewith which may enure for the benefit or protection of Lord Tredegar.

35. For the protection of Smiths Newport Limited or other the owners for the time being of the premises in the borough known as the Cinderhill Wharf and of the South Wales and Liverpool Steamship Company Limited or other the owners for the time being of the wharves in the borough known as the Liverpool Bristol and Moderator Wharves (all of whom are in this section

For protection of Smiths Newport Limited and South Wales and Liverpool

[Ch. lxxviii.] *Newport Corporation* [20 & 21 GEO. 5.]
(No. 1) Act, 1930.

A.D. 1930.
—
Steamship
Company
Limited.

referred to as "the owners") the following provisions shall unless otherwise agreed in writing between the owners and the Corporation have effect (that is to say) :—

- (1) Notwithstanding anything in the section of this Act of which the marginal note is "As to access to new road" or any restrictions of user of the new road which may be imposed by the Corporation it shall be lawful for the owners and for all persons resorting to the premises of the owners to stand any road vehicles on the new road whenever and for so long as it may be necessary for them so to do owing to the level crossing giving access to the said premises not being open for the passage of such road vehicles thereover :
- (2) Notwithstanding anything in this Act or in any enactment applied thereby the Corporation shall not for the purposes of or during the construction of Work No. 9 and other works connected therewith by this Act authorised (except between the hours of noon on Saturday and six in the forenoon of the next following Monday) close at any one time both Skinner Street and Corn Street to the passage of road vehicles going to or coming from the premises of the owners :
- (3) The Corporation shall not under the powers of the sections of this Act of which the marginal notes are respectively "Power to deviate" (Part II) "Power to construct deviation of railway" and "Power to deviate" (Part III) or otherwise construct the new road and the deviation of railway so that there is any material difference in level between the new road the level crossing over the deviation of railway giving access to the premises of the owners or between the said level crossing and the said premises :
- (4) Subject and without prejudice to the right of the Corporation to convey to the railway company the whole or such part of the lands acquired from the owners respectively under the powers of this Act as the railway company may require for the purposes of this Act the owners

shall be entitled to exercise with reference to any lands so acquired from them respectively all such rights of pre-emption as they are respectively entitled to exercise under or by virtue of any existing Act. A.D. 1930.

36. For the protection of Tilneys Kinemas Limited their successors and assigns or other the owner or owners for the time being of the lands in the borough delineated on the plan in this section referred to and thereon coloured blue (all of whom are in this section collectively referred to as "the owners") the following provisions shall notwithstanding anything in this Act contained or shown upon the deposited plans and except so far as may be otherwise agreed in writing between the Corporation and the owners apply and have effect (that is to say):—

For protec-
tion of
Tilneys
Kinemas
Limited.

- (1) In this section the expression "the signed plan" means the plan signed in duplicate by the town clerk on behalf of the Corporation and by Arthur Frederick Dolman solicitor on behalf of the owners one copy of which has been retained by the Corporation and the other copy of which has been retained by the owners:
- (2) If and so soon as the Corporation determine to proceed with the construction of (a) the new road (Work No. 9) authorised by the section of this Act of which the marginal note is "Power to construct street works" and (b) the deviation of railway and to require the closing of the southern portion of canal in exercise of the powers of the section of this Act of which the marginal note is "Railway company to close southern portion of canal and to have power to close northern portion of canal" (all of which works are in this section collectively referred to as "the said works") the Corporation shall pass a formal resolution to that effect and within six months after the date of such resolution shall serve notice to treat upon the owners for the acquisition of the lands of the owners shown upon the signed plan and hatched thereon in pink and shall not acquire under the powers of this Act any greater quantity of the lands of the owners shown upon the signed plan than such last-mentioned lands:

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(No. 1) Act, 1930.

A.D. 1930.

(3) Upon the acquisition by the Corporation of the lands referred to in subsection (2) of this section there shall be reserved or secured in perpetuity to the owners their lessees occupiers servants and customers without any monetary consideration being paid therefor a right of access both for passengers and vehicles to and from the lands coloured blue on the signed plan and any buildings to be erected thereon from and to the said new road such right to be exerciseable between the points fifteen feet apart marked "X" and "Y" on the signed plan and the owners shall provide fix and maintain gates at such point of access (opening inwards only) to the reasonable satisfaction of the Corporation. Any pavement constructed by the Corporation abutting upon the frontage of the owners property to the said new road shall permit of convenient access by vehicles between the same and the said lands and buildings :

(4) The Corporation shall in constructing the said works provide for the existing streets known as Merchant Street and Friars Street being properly and effectively connected with the said new road so as to form junctions therewith and shall continue to maintain them as public highways. The said Merchant Street shall be slightly widened on the eastern side along the frontage to the land coloured green on the said plan so as to make it of a uniform width with that portion of it which lies immediately southwards of the land coloured green. The Corporation shall also widen the portion of Friars Street between the points "A" and "B" marked on the signed plan to the same width as the present width of that part of Friars Street which lies to the south of the said point "B" and shall construct the said extension of Friars Street of a uniform width not less than that of the remaining portion of the said street as so widened. The Corporation shall also suitably round off the corner at the point of junction between the eastern side of Friars Street as so widened and the southern side of the said new

A.D. 1930.

road and shall not construct any pavement on the west side of Friars Street as so widened. The owners shall re-pay to the Corporation the reasonable cost of carrying out this widening and rounding off (including the value of any land and buildings which may be required in connection therewith) :

- (5) The Corporation shall for the purposes of the street works acquire the lands delineated on the signed plan and thereon hatched in green and demolish the buildings thereon and shall sell and convey to the owners the fee simple of the said lands (except the small portion required for the widening of Merchant Street referred to in subsection (4) hereof) which the owners shall if they think fit be entitled to utilise at their own expense as a means of access to and egress from the western side of the lands coloured blue upon the signed plan or any buildings to be erected thereon from and to Merchant Street both for foot passengers and vehicles. The price to be paid by the owners to the Corporation for the lands so sold and conveyed to them shall in the event of dispute be settled by the tribunal :
- (6) The said works and all works of widening or access provided for by this section shall when commenced be proceeded with by the Corporation to completion with all reasonable dispatch and the Corporation shall not during the construction of the said works unreasonably interfere with the access to and egress from the said lands coloured blue upon the signed plan except so soon and so far as may be reasonably necessary for the purposes of such construction :
- (7) Simultaneously with the commencement of the construction of the said works the Corporation shall provide and erect and (so long as the Corporation require its retention) shall maintain along the frontage of the owners lands to the said new road (except for the width of fifteen feet between the points " X " and " Y " referred to in subsection (2) hereof) a suitable unclimbable fence of such material and height as the owners may reasonably approve :

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(No. 1) Act, 1930.

A.D. 1930.

(8) In assessing the amount of any compensation payable by the Corporation to the owners under the provisions of this Act regard shall be had to the provisions of the section of this Act of which the marginal note is "Benefits to be set off against compensation" and of this section and to any permission given by the Corporation to the owners for the construction of a verandah or canopy projecting beyond the improvement line in Dock Street prescribed by the Corporation under section 45 of the Act of 1914:

(9) If any question (other than any question as to the compensation to be paid to the owners for the compulsory acquisition of lands or the injuriously affecting of their property and rights as to which the provisions of the Lands Clauses Acts shall apply) shall arise between the Corporation and the owners as to the true intent and meaning of any of the provisions of this section or as to anything to be done or not to be done thereunder the same shall be determined by a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of the Corporation or the owners and subject as aforesaid the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof for the time being in force shall apply to any such arbitration.

For protection of
Nicholas
and
Company
Limited.

37. Notwithstanding anything in this Act or shown on the deposited plans the following provisions for the protection and benefit of Nicholas and Company Limited or other the owners or owner for the time being of the properties numbered 285 286 296 297 298 299 300 and 301 on the deposited plans (all of whom are in this section included in the expression "the owners") shall unless otherwise agreed in writing between the Corporation and the owners apply and have effect (that is to say):—

(1) The new road (Work No. 9) by this Act authorised and the deviation of railway so far as the same affect the property of the owners shall be constructed strictly in accordance with the plan signed in duplicate by O. Treharne Morgan on

behalf of the Corporation and by Blethyn T. Rees on behalf of the owners (in this section referred to as "the signed plan") and the Corporation shall—

A.D. 1930.

(a) for the purposes of or in connection with the said Work No. 9 acquire so much only of the property of the owners numbered 285 on the deposited plans as lies between the easterly wall of the owners premises No. 286 on the deposited plans and the existing railway and is coloured green upon the signed plan;

(b) for the purposes of or in connection with the deviation of railway acquire so much only of the property of the owners numbered 296 299 300 and 301 on the deposited plans as is coloured green upon the signed plan but the owners shall afford on such other part of the property numbered 296 299 300 and 301 as aforesaid such temporary facilities as the Corporation may reasonably require to enable them to construct the deviation of railway and on the completion of such construction any part of the owners' said property which may have been temporarily occupied or used by the Corporation shall be restored to as good a condition in which it was before such temporary occupation and user:

(2) The Corporation shall to the reasonable satisfaction of the owners and for all purposes in connection with the business of the owners provide all necessary facilities and execute all necessary temporary works for enabling the owners at all times during the construction of the said Work No. 9 and the deviation of railway to have free and uninterrupted access to and egress from their said property either by means of the existing roadways and the existing railway and sidings of the railway company or by such other substituted means as the owners shall reasonably approve:

(3) Contemporaneously with the construction of the deviation of railway the Corporation or the railway company shall to the reasonable

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(No. 1) Act, 1930.

A.D. 1930.

approval of the owners provide and make a sufficient and proper junction between the existing rails of the owners on the property numbered 296 as aforesaid and the new junctions and sidings shown upon the signed plan :

- (4) From and after the completion of the said Work No. 9 and the deviation of railway the Corporation shall relieve the owners of their responsibility (if any) to maintain and keep in good repair and condition the road known as Screw Packet Road and the owners shall so far as the Corporation are concerned have free and unrestricted right of passage over such road to and from their said property numbered 296 as aforesaid for all purposes in connection with the business of the owners :
- (5) The powers of the Corporation for the compulsory purchase of lands so far as the same may be exerciseable over the property of the owners shall cease after the expiration of three years from the date of the passing of the Act :
- (6) Any question or difference arising between the Corporation and the owners or the railway company and the owners under the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of any or either of the said parties after notice in writing to the other or others of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

PART IV.

LANDS.

Power to
acquire
lands.

38. The Corporation may (in so far as they are not already possessed of the same) enter upon take and use the lands and interests in lands hereinafter mentioned :—

- (a) For the purposes of the street works and for providing space for the erection of buildings adjoining and near thereto respectively the lands in the borough shown on the deposited

plans and described in the deposited book of reference in relation to the street works; A.D. 1930.

- (b) For the construction of the deviation of the Monmouthshire (Eastern Valleys) Railway authorised by Part III of this Act and of sidings approaches works and conveniences connected therewith the lands in the borough shown on the deposited plans and described in the deposited book of reference in relation thereto;
- (c) For the purpose of providing a terminus and turning point for trolley vehicles a piece of land in the parish of Christchurch in the rural district of Magor shown on the deposited plans containing three-quarters of an acre or thereabouts being part of the enclosure No. 380 on the Ordnance map (scale $\frac{1}{2500}$) edition of 1920 Monmouthshire sheet XXIX. 14 and forming the southern corner of that enclosure.

39. Notwithstanding anything in this Act or shown on the deposited plans the Corporation shall not except with the consent in writing of the Postmaster-General enter upon take or use the property numbered 112 on the deposited plans relating to lands in the parish and county borough of Newport in the county of Monmouth or any part thereof. For protection of Postmaster-General.

40. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the thirty-first day of December nineteen hundred and twenty-nine. Period for compulsory purchase of lands.

41.—(1) The following provisions of the Act of 1902 the Act of 1914 and the Act of 1925 shall so far as applicable extend and apply to and with respect to any lands authorised to be acquired under this Act and to the Corporation in respect thereof in as full and complete a manner as if those sections were re-enacted in this Act with reference thereto :— Application of sections of former Acts to lands.

Act of 1902—

Section 24 (Power to take easements &c. by agreement);

Section 25 (Correction of errors &c. in deposited plans and books of reference);

Section 28 (Power to retain sell &c. lands):

Section 29 (Proceeds of sale of surplus lands).

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(No. 1) Act, 1930.

A.D. 1930.

Act of 1914—

Section 21 (Owners may be required to sell parts only of certain properties);

Section 25 (Power to Corporation to enter upon property for survey and valuation).

Act of 1925—

Section 8 (Extinction of private rights of way);

Section 11 (Further powers for the acquisition of lands);

Section 12 (Power to develop lands &c.);

Section 13 (Power to reinstate owners of property) :

Provided that for the purposes of this Act section 21 of the Act of 1914 shall be deemed to refer to properties whereof the whole or part is described in the Second Schedule to this Act.

(2) In the exercise of the powers of section 28 of the Act of 1902 and section 12 of the Act of 1925 as applied to this Act the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any lands or interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

Compensation in case of recently acquired interest.

42. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Part of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twenty-first day of November nineteen hundred and twenty-nine if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Benefits to be set off against compensation.

43. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Part of this Act for the purposes of Part II (Street works) thereof of any part of

the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of the new road (Work No. 9) by this Act authorised or the widening or improvement of any street or arising through such adjoining lands becoming lands fronting on the said new road or such street shall be fairly estimated and shall be set off against the said compensation or purchase money.

A.D. 1930.

44. Notwithstanding anything in this Act or shown on the deposited plans the Corporation shall not acquire otherwise than by agreement any greater portion of the properties numbered on the deposited plans 246 247 and 248 in the borough than is shown coloured red on the plan signed by Oscar Treharne Morgan on behalf of the Corporation and by Thomas Baker Jones on behalf of the Royal Gwent Hospital.

For protection of
Royal
Gwent
Hospital.

PART V.

TROLLEY VEHICLES.

45.—(1) The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may work the same along all or any of the following routes (that is to say):—

Power to
use trolley
vehicles.

Route No. 1 Wholly in the borough commencing in Commercial Street at or near a point opposite the Westgate Hotel passing thence along Commercial Street into and along High Street thence along that street over Newport Bridge into and along Clarence Place thence into and along Chepstow Road to and terminating at the present tramway terminus in that road;

Route No. 2 Commencing in the borough in Chepstow Road at the termination of Route No. 1 passing thence along Chepstow Road to and terminating in the parish of Christchurch in the rural district of Magor at a point in Chepstow Road about 100 yards eastwards from the Royal Oak inn;

Route No. 3 Wholly in the said parish of Christchurch commencing by a junction with Route No. 2 at or near the Royal Oak inn and passing thence along Christchurch Hill leading to

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(No. 1) Act, 1930.

A.D. 1930.

Christchurch Village to and terminating at a point in Christchurch Hill about 100 yards northwards from the Royal Oak inn;

Route No. 4 Wholly in the borough commencing in Skinner Street by a junction with Route No. 1 at or near High Street passing thence along Skinner Street into and along Dock Street to and terminating by a junction with Route No. 1 at or near the junction of Dock Street and High Street;

Route No. 5 Wholly in the borough commencing in Bridge Street by a junction with Route No. 1 at or near High Street passing thence along Bridge Street into and along Cambrian Road and Station Approach to and terminating by a junction with Route No. 1 at or near the junction of Station Approach and High Street;

Route No. 6 Wholly in the borough along Corporation Road from Chepstow Road to the Corporation tramways depot;

and with the consent of the Minister along any other roads highways and public places or on any lands whether in the borough or the said district for the purpose of providing a turning point or of connecting the trolley vehicle routes or of obtaining access to and from any lands garage shed or other building of the Corporation.

(2) Before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any such route the Corporation shall submit plans of the turning point to the Minister for approval and to the road authority who may make representations in regard thereto to the Minister. No turning point shall be fixed upon any road or street belonging to or maintained by the railway company without the consent in writing of that company.

(3) The Corporation shall not for a period of two years from the passing of this Act place or erect any posts poles wires or other apparatus for the purpose of working trolley vehicles nor shall they work or run trolley vehicles along Route No. 2 until the road along which the same proceeds has been reconstructed and widened

to the satisfaction of the Minister Provided that the Corporation may simultaneously with the reconstruction and widening of the said road with the consent of the surveyor of the county of Monmouth and subject to his approval lay down and construct underground cables ducts or channels in the said road (including footways) in connection with the trolley vehicles. A.D. 1930.

46.—(1) Subject to the provisions of this Act the Corporation may in under or over the surface of the streets or roads along or adjoining those along which they are or may be authorised to work trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power and may for that purpose subject to such of the provisions of Part II of the Tramways Act 1870 as are incorporated with this Act and to the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder and may supply electrical energy for the purpose of working the trolley vehicles : As to electrical works.

Provided that—

- (a) all posts and other apparatus erected by the Corporation under this section shall be placed in such position as the road authority may approve but such approval shall not be unreasonably withheld and any question whether such approval is unreasonably withheld shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply to any such reference; and
- (b) no post or other apparatus shall be erected on the carriageway of any public street or road except with the consent of the Minister.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15

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(No. 1) Act, 1930.

A.D. 1930. of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(3) The Corporation may also adapt and use for the purpose of working trolley vehicles any apparatus and equipment already provided by them for working tramways.

(4) In this section the expression "generating station" has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

Corporation
to have
exclusive
right of
using appa-
ratus for
working
trolley
vehicles.

47. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working the trolley vehicles and any person (except by agreement with the Corporation) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

Trolley
vehicles
not to be
deemed
light loco-
motives or
motor cars.

48. The trolley vehicles shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor omnibuses within the meaning of the Town Police Clauses Act 1889 nor motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to those exceptions neither the Motor Car Acts 1896 and 1903 nor any byelaws or regulations made thereunder nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the trolley vehicles.

Licence
duties on
trolley
vehicles.

49. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles as hackney carriages.

Approval of
vehicles and
equipment
by Minister.

50.—(1) The trolley vehicles and the electrical equipment thereof used under the authority of this Act shall be of such form construction weight and dimensions as the Minister may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister.

(2) Before applying to the Minister for his approval of the weight of any trolley vehicle to be used upon any road which crosses a bridge belonging to and repairable by the railway company the Corporation shall give to the railway company notice of the weight of the trolley vehicles proposed to be used by them upon such road and the Minister shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him within seven days of the receipt by the railway company of such notice on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight. Provided that notice of such objections shall be forwarded by the railway company to the Corporation at the same time as they are submitted to the Minister.

A.D. 1930.

51. No trolley vehicle route shall be opened for public traffic until it has been inspected and certified to be fit for traffic by an officer appointed by the Minister.

Inspection
by Minister.

52.—(1) The following provisions of the Tramways Act 1870 (so far as applicable for the purposes and not inconsistent with the provisions of this Part of this Act) are hereby incorporated with this Act and shall apply to the trolley vehicles authorised by this Act and such provisions shall be read and have effect as if the works to be constructed in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the trolley vehicles were carriages used on tramways:—

Application
of certain
provisions of
Tramways
Act 1870 to
trolley
vehicles.

Part II (Relating to the construction of tramways)
except sections 22 25 28 and 29;

Section 41 (Tramways to be removed in certain cases);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in bye-laws);

Section 48 (Power to local authority to licence drivers conductors &c.);

Section 49 (Penalty for obstruction of promoters in laying out tramway);

Section 51 (Penalty on passengers practising frauds on the promoters);

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Section 53 (Penalty for bringing dangerous goods on the tramway);

Section 55 (Promoters or lessees to be responsible for all damages);

Section 56 (Recovery of tolls penalties &c.);

Section 57 (Right of user only);

Section 60 (Reserving powers of street authorities to widen &c. roads); and

Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

Provisions

as to motive
power.

53. The trolley vehicles may be moved by mechanical power subject to the following provisions:—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Minister:

(2) The Minister shall make regulations (in this Act referred to as "the mechanical power regulations") for securing to the public all reasonable protection against danger arising from the user under this Act of mechanical power for the trolley vehicles and for regulating the use of electrical power:

(3) The Corporation or any company or person using any mechanical power for the trolley vehicles contrary to the provisions of this Act or of the mechanical power regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also if a continuing offence to a further penalty not exceeding five pounds for every day during which the offence is continued after conviction thereof:

(4) The Minister if he is of opinion—

(a) that the Corporation or such company or person have or has made default in complying with the provisions of this Act or of the mechanical power regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) that the use of mechanical power as authorised under this Act is a danger to the passengers or the public; A.D. 1930.

may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Minister may impose and the Corporation or such company or person shall comply with every such order. In every case the Minister shall make a special report to Parliament notifying the making of such order.

54. Subject to the provisions of this Act the following sections of the Act of 1892 the Act of 1897 the Act of 1900 the Act of 1902 the Act of 1914 the Order of 1917 and the Act of 1925 shall extend and apply to the trolley vehicles and the apparatus and equipment used under the authority of this Act and to the Corporation in respect thereto in as full and complete a manner as if those sections (with all necessary alterations and with the substitution of the word "Minister" for the words "Board of Trade") were re-enacted in this Act (that is to say):—

Application
of existing
enactments
to trolley
vehicles.

Act of 1892—

Section 16 (Substituted tramways may be made where necessary);

Section 17 (Application of road materials excavated);

Section 22 (Corporation &c. not bound to carry heavy goods);

Section 23 (Heavy traffic confined to certain hours);

Section 24 (Cheap fares for labouring classes);

Section 25 (Periodical revision of tolls).

Act of 1897—

Section 26 (Orders and byelaws).

Act of 1900—

Section 39 (Power to make additional crossings &c.);

Section 45 (Byelaws);

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Section 49 (Special provisions as to use of
electrical power).

Act of 1902—

Section 8 (For protection of Postmaster-
General) as amended by this Act;

Section 11 (Newport (Monmouthshire) Gas Com-
pany may themselves execute
alteration of mains &c.).

Act of 1914—

Section 33 (Penalty for malicious damage);

Section 34 (Use of tramway posts by Postmaster-
General);

Section 58 (Shelters or waiting-rooms).

Order of 1917—

Section 6 (Power to generate electricity);

Section 30 (As to alteration of telegraphic lines);

Section 31 (Agreements with adjoining owners
&c.).

Act of 1925—

Section 42 (Provisions as to adaptation of
roads &c.);

Section 44 (Fares and charges &c.);

Section 48 (Power to reserve cars for special
purposes);

Section 50 (Shelters &c.);

Section 51 (Cloak-rooms &c.);

Section 52 (Attachment of signs indicating stop-
ping places to lamp-posts &c.);

Section 53 (Corporation may appoint stopping
and starting places):

Provided that—

(a) section 42 of the Act of 1925 shall apply only
to Route No. 3 referred to in the section of
this Act of which the marginal note is
“ Power to use trolley vehicles ”;

(b) in the exercise of the powers of section 52 of
the Act of 1925 as applied to the purposes of
this Part of this Act the Corporation shall
not attach any sign or direction to any pole

post or standard belonging to any local or road authority except with the consent of the authority in writing; A.D. 1930.

- (c) in the exercise by the Corporation for the purposes of this Part of this Act of the powers of section 58 (Shelters or waiting-rooms) of the Act of 1914 and of section 50 (Shelters) section 51 (Cloak-rooms &c.) and section 53 (Corporation may appoint stopping and starting places) of the Act of 1925 the Corporation shall not (except with the consent in writing of the railway company under the hand of their secretary or general manager) erect maintain or provide any shelter waiting-room cloak-room room or shed or appoint any starting or stopping station or place so as to cause interference with or render less convenient the access to or exit from any station depot or property belonging to the railway company nor without the like consent shall any such shelter waiting-room cloak-room room or shed be erected maintained or provided on any bridge carrying any street or road over the railways of the railway company or on the approaches to any such bridge;

- (d) subsection (7) of section 63 (For protection of Great Western Railway Company) of the Act of 1914 shall apply and have effect as if the words "shed shelter waiting-room or gangway" were substituted for the words "shelter or waiting-room."

55. Subsection (4) of section 8 of the Act of 1902 shall be read and have effect as if the words "generated" or used by or supplied to the Corporation for tramway purposes" were inserted in that subsection in substitution for the words "generated for tramway purposes by the Corporation."

For protection of Postmaster-General.

56. All subsisting regulations and byelaws relating to the tramways made in pursuance of the Tramways Act 1870 or of any other statutory enactment so far as the same are applicable shall with the necessary modifications apply to the trolley vehicles.

Tramway regulations to apply to trolley vehicles.

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As to abandon-
ment of
tramways.

57.—(1) At any time after the passing of this Act the Minister may by order authorise or require the Corporation to abandon or discontinue temporarily or permanently any of their tramways and light railways (for the time being) along the route of which the Corporation have ceased to run tramcars or light railway cars and have provided and equipped or are about to provide and equip trolley vehicles under the provisions of this Act or any Provisional Order made thereunder.

(2) Before making any order under the provisions of this section the Minister may hold such inquiry as he may consider desirable.

(3) Any order made under the provisions of this section may as from such date as may be specified therein provide for the cesser of all or any of the powers liabilities duties or obligations conferred or imposed upon the Corporation by any Act or Order relating to any tramway or light railway to be abandoned or discontinued in pursuance of such order and may provide for the removal of the rails of such tramway or light railway from the surface of the road and for the portion of the road upon which such rails were laid to be left in good repair and condition so as to comply with the requirements of section 41 of the Tramways Act 1870.

Attachment
of brackets
to buildings.

58.—(1) The Corporation may with the consent of the owner of any building wall or bridge attach thereto ~~such brackets wires and apparatus~~ as may be required for the working of the trolley vehicles by mechanical power Provided that—

(a) where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building wall or bridge and to the other circumstances to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the attachment and may determine by which of the parties the costs of the appeal are to be paid;

(b) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after that owner ceases

to be in possession of the building wall or bridge A.D. 1930.
but any attachments fixed under the provisions
of this section shall not be removed until the
expiration of three months after any subsequent
owner shall have given to the Corporation
notice in writing requiring the attachments to
be removed. Where such notice is given the
preceding provisions of this section shall apply
and the court of summary jurisdiction shall
have the same power as under proviso (a) of
this section;

- (c) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building wall or bridge.

(2) For the purpose of this section any occupier of a building wall or bridge whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

59.—(1) If at any time hereafter the Corporation desire to provide maintain equip and use trolley vehicles upon any road as defined by the Tramways Act 1870 within the borough (other than the roads along which they are authorised to use trolley vehicles under the foregoing provisions of this Act) they may make application to the Minister and the Minister is hereby empowered to make a Provisional Order authorising the use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road or roads to which such application relates and containing such incidental provisions as the Minister may deem expedient and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act.

Minister
may autho-
rise new
routes.

(2) No such application shall be entertained by the Minister unless the Corporation shall—

- (a) have published once in each of two successive weeks in the months of October or November in some newspaper or newspapers circulating in the borough notice of their intention to make such application and have published the like

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notice once in one or other of the same months
in the London Gazette;

(b) have posted for fourteen consecutive days in the
months of October or November in conspicuous
positions in each of the roads to which such
application relates a notice of their intention to
make such application;

and each such notice shall state the time and method for
bringing before the Minister any objections to the grant
of such application.

(3) The Minister may and he is hereby empowered
to prescribe the procedure with respect to any applica-
tion for a Provisional Order under this section.

(4) The Minister shall consider any such application
and may if he thinks fit direct an inquiry in relation
thereto to be held or may otherwise inquire as to the
propriety of proceeding upon such application and he
shall consider any objection to such application that may
be lodged with him in accordance with the prescribed
procedure and shall determine whether or not it is
expedient and proper that the application be granted
either with or without addition or modification or subject
or not to any restriction or condition.

(5) In any case where it shall appear to the Minister
expedient that the application be granted he may settle
and make a Provisional Order authorising the same and
shall as soon as conveniently may be thereafter procure a
Bill to be introduced into either House of Parliament for
an Act to confirm the Provisional Order which shall be
set out at length in a schedule to the Bill and until con-
firmation with or without amendment by such Act of
Parliament a Provisional Order under this Act shall not
have any operation.

(6) If while any such Bill is pending in either House
of Parliament a petition is presented against any Pro-
visional Order comprised therein the Bill so far as it
relates to the Order petitioned against may be referred to
a Select Committee and the petitioner shall be allowed to
appear and oppose as in the case of a Bill for a special
Act.

(7) The Act of Parliament confirming a Provisional
Order under this section shall be deemed a public general
Act.

(8) The making of a Provisional Order under this section shall be prima facie evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with. A.D. 1930.

(9) Any expenses incurred by the Minister in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Minister in connection with any inquiry under this section shall be paid by the Corporation.

60.—(1) The Corporation and any local authority empowered to run trolley vehicles in any borough or urban or rural district adjacent to the borough or adjacent to any borough or urban or rural district in which any route over which the Corporation are for the time being empowered to run trolley vehicles is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the trolley vehicle services which the contracting parties are empowered to provide subject to the provisions of any Act or Acts under which such trolley vehicle services are respectively authorised. Working and other agreements.

(2) The Corporation and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Act of any trolley vehicle services within the borough or on any route outside the borough over which the Corporation are for the time being empowered to run trolley vehicles.

(3) The Corporation and any such local authority company body or person as aforesaid may also enter into and carry into effect agreements for all or any of the following purposes (that is to say):—

(a) The working user management and maintenance of any trolley vehicles lands depots buildings sheds and property provided in connection with any such trolley vehicle services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services;

(b) The supply by any of the contracting parties under and during the continuance of any such

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agreement under this section of trolley vehicles and conveniences in connection therewith respectively necessary for the purposes of such agreement and the employment of officers and servants;

(c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any trolley vehicle service of the contracting parties;

(d) The payment collection and apportionment of the fares and charges and other receipts arising from any such trolley vehicle service as aforesaid.

(4) The Corporation shall not enter into or carry into effect any agreement under the provisions of this section in relation to any trolley vehicle service lands depots buildings sheds or property beyond the borough otherwise than with the consent of the local authority of the district within which such trolley vehicle service lands depots buildings sheds or property are situate. Provided that on complaint being made to the Minister that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.

Through
trolley
vehicles.

61.—(1) The Corporation may run through trolley vehicles along any route on which they are for the time being authorised to run trolley vehicles and such trolley vehicles shall be distinguished from other trolley vehicles in such manner as may be directed by the Corporation.

(2) The Corporation may demand and take for every passenger conveyed by any such through trolley vehicle a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such trolley vehicle.

(3) During the running of such through trolley vehicles the Corporation shall maintain a reasonably sufficient ordinary service of trolley vehicles.

Conveyance
of mails.

62. The Corporation shall perform in respect of the trolley vehicles provided under this Act such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

63. For the protection of the railway company the following provisions shall unless otherwise agreed in writing between the Corporation and the railway company apply and have effect (that is to say):—

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—
For protec-
tion of
railway
company.

(1) In this section the word “ apparatus ” means standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working trolley vehicles under or in pursuance of this Part of this Act :

(2) The apparatus where the same shall be erected or placed upon across under or over any bridge or the approaches thereto or over any level crossing or other work belonging to or maintainable by the railway company or will otherwise affect the same shall be erected or placed and maintained so as not to affect injuriously the structure of any such bridge or approaches and according to plans and particulars to be previously submitted to and reasonably approved by the railway company. Provided that if the railway company do not within twenty-eight days after such submission signify their disapproval of such plans and particulars they shall be deemed to have approved thereof. All such apparatus shall be erected or placed under the superintendence (if the same be given) and to the reasonable satisfaction of the railway company. The Corporation shall so construct maintain and use the apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the railway company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

(3) The Corporation shall on demand pay to the railway company the reasonable expense (if any) of watching the railway and property of the railway company which shall be necessary during and in consequence of the execution or repair by the Corporation under or in pursuance

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of this Part of this Act of any apparatus affecting any bridge or other work belonging to or maintainable by the railway company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them :

- (4) The Corporation shall not in any manner in the execution maintenance user or repair of any of the apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or siding belonging to or maintainable by the railway company or any traffic thereon :
- (5) The Corporation shall be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to the railway company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any of their contractors in connection with the apparatus or any part thereof and the Corporation shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (6) If the railway company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway thereunder or thereover the Corporation shall afford to the railway company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the apparatus be taken up diverted or removed and if the railway company accordingly give to the Corpora-

tion twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the railway company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal:

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- (7) The Corporation shall from time to time pay to the railway company any additional expense which the railway company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the railway company by reason of the existence or user of the works or apparatus:
- (8) If and when the railway company shall require to reconstruct widen lengthen alter repair or paint any bridge under which any electric wire of the Corporation has been placed under or in pursuance of this Part of this Act and if it shall be reasonably necessary for them so to do the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction widening lengthening alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the railway company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of

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protection to workmen which shall have been approved by the said engineer :

- (9) If having regard to the proposed position of any apparatus of the Corporation authorised by or in pursuance of this Part of this Act when considered in relation to the position of the works of the railway company at any point where any apparatus will be constructed over or under the railway or other works of the railway company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the railway company shall be altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the railway company by the Corporation Provided that notice of their intention to execute such works shall be given by the railway company to the Corporation :
- (10) The Corporation shall not for the purposes of this Part of this Act make attachments to any bridge or other property of the railway company without the consent in writing of the engineer of the railway company which shall not be withheld unreasonably such attachments if allowed to be temporarily removed at any time when required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge :
- (11) If any difference shall arise between the Corporation and the railway company or their respective engineers with reference to the matters aforesaid such difference shall be referred to arbitration the arbitrator being appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Monmouthshire County Council.

64. The following provisions for the protection of the Monmouthshire County Council (in this section referred to as "the county council") shall notwith-

standing anything in this Act and unless otherwise agreed in writing apply and have effect with respect to the provision and use by the Corporation of trolley vehicles on any road maintained by or at the expense of the county council (that is to say):—

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(1) Nothing in this Part of this Act shall interfere with the right of the county council to alter the level of deviate widen reconstruct or improve any highway (each of which works is in this section referred to as a "highway alteration") or to remove alter rebuild widen or repair any bridge (each of which works is in this section referred to as a "bridge alteration") along which highway or bridge any posts or apparatus have or shall have been erected laid or placed in the same manner as if this Act had not been passed. If for the purposes of or in connection with any such highway alteration or bridge alteration executed within a period of three years from the passing of this Act it shall be reasonably necessary to take up or remove or alter the position of any posts or apparatus erected laid or placed along any such highway or bridge the Corporation shall (if required by the county council) either take up and replace in the same or some other position or alter the position of such posts or apparatus in such manner and to such extent as the county council may determine:

(2) If the Corporation in the execution under this Part of this Act of any works in or affecting any county road shall cause any damage injury or disturbance to such road and shall fail properly to make good all such damage injury or disturbance then it shall be lawful for the county council after reasonable notice to the Corporation of the alleged failure and of the works which they propose to execute to do all works necessary for making good all damage injury or disturbance and the Corporation shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence:

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- (3) If it becomes necessary that the working of the trolley vehicles of the Corporation over any county or main road bridge be wholly or in part stopped or delayed for the purpose of any repairs to or alteration of such bridge and if the county council give the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage or delay the working of the trolley vehicles shall be stopped or delayed as reasonably required by such notice but no such working shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and in such case the county council shall not be liable to pay compensation in respect of such stoppage or delay as aforesaid :
- (4) The Corporation shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place or erect or attach any post or other support for any wire or any feeder box on or to the structure of any bridge as aforesaid and any such post support or box which shall with such consent have been so placed erected or attached shall be temporarily removed at any time when required by the county council in connection with the maintenance reconstruction or alteration of any such bridge :
- (5) If any difference arises under this section between the Corporation and the county council the same shall be settled by an engineer to be appointed at the request of either party by the Minister and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART VI.

FINANCE.

Power to
borrow.

65.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the

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respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column thereof (namely) :—

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(1) Purpose.	(2) Amount.	(3) Period for repayment (from date or dates of borrowing except where otherwise stated).
(a) For the purchase of lands for and in connection with the deviation of railway and for the construction of the deviation of railway.	£ 8,750	Sixty years.
(b) For the purchase of lands for and in connection with the street works.	49,000	Sixty years.
(c) For the purchase of the lands (c) described in the section of this Act of which the marginal note is "Power to acquire lands."	225	Sixty years.
(d) For the construction of street works and works connected therewith.	51,940	Forty years.
(e) For the purchase of trolley vehicles	28,000	Ten years.
(f) For the provision of electrical equipment and the construction of other works necessary for working trolley vehicles.	18,500	Twenty years.
(g) For the construction of buildings and conveniences and other purposes in connection with the new terminus and turning point on the said lands (c).	1,000	Thirty years.
(h) For payment of the costs charges and expenses referred to in the final section of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also borrow such further money as may be necessary for any purposes of this Act with the consent of the Minister of Transport for the purposes of the tramways undertaking and for the purposes of Part III (Closing of canal and deviation of railway) and the consent of the Minister in the case of any other purposes.

(b) Any money borrowed under this Act with the consent of the Minister of Transport or the Minister shall be repaid within such period as may be prescribed by the Minister with whose consent it is borrowed.

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(3) In order to secure the repayment of any moneys borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

As to tram-
way loans.

66. The Corporation shall notwithstanding anything in any other Act or Order to the contrary pay off within a period of ten years from the date of any order made by the Minister of Transport under the provisions of the section of this Act of which the marginal note is "As to abandonment of tramways" any loans outstanding at that date in respect of any works forming part of the tramways or light railways which they are empowered or required to abandon or discontinue in pursuance of any such order except such of those works as will be retained by the Corporation for the purposes of the trolley vehicles.

Application
of financial
provisions
of Acts of
1906 1914
and 1925.

67. The following provisions of the Act of 1906 the Act of 1914 and the Act of 1925 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if they were re-enacted in this Act with any necessary modifications:—

Act of 1906—

- Section 39 (Protection of lenders from inquiry);
- Section 45 (Application of money borrowed);
- Section 46 (Corporation not to regard trusts).

Act of 1914—

- Section 50 (Certain provisions of Public Health Acts not to apply);
- Section 52 (Mode of payment off of money borrowed) as amended by this Act.

Act of 1925—

- Section 86 (Mode of raising money);
- Section 87 (Provisions of Public Health Act 1875 as to mortgages to apply);
- Section 91 (Use of moneys forming part of sinking and other funds).

Power to
borrow by
issue of
bonds.

68.—(1) In addition to any other form of borrowing the Corporation may borrow any sums which they have power to borrow under any statutory borrowing power by the issue of bonds to be called "Corporation bonds" in accordance with the provisions of this Part of this Act.

(2) The provisions set out in the Third Schedule to this Act shall have effect with regard to bonds. A.D. 1930.

(3) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(4) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply to bonds as if those bonds were stock or funded debt within the meaning of that section.

69. Notwithstanding anything in section 52 (Mode of payment off of money borrowed) of the Act of 1914 it shall not be obligatory on the Corporation in the case of money borrowed for trolley vehicles or trolley vehicle equipment or for lands or buildings in connection therewith to commence any repayment by instalments or to set apart or appropriate any money to or for a sinking fund until the expiration of one year after the trolley vehicle system in respect of which such money shall have been borrowed shall have been completed and opened for public traffic or two years from the borrowing thereof whichever period shall be the earlier but nothing herein contained shall relieve the Corporation from any obligation as to payment of interest on loans which are repayable by instalments of principal and interest. Amendment of section 52 of Act of 1914.

70. Notwithstanding anything in any enactment to the contrary the Corporation may accelerate the repayment of any loan by increasing the amounts payable to any sinking fund loans fund or redemption fund. Power to accelerate repayment of loans.

71.—(1) Notwithstanding anything in this Act or in the Public Health Acts Amendment Act 1890 or in any other Act or Order the Corporation may (if they think fit) on and after the thirty-first day of March nineteen hundred and thirty establish a fund to be called "the consolidated loans fund" to which shall be paid— Consoli- dated loans fund.

(a) all moneys borrowed by the Corporation whether by issue of mortgages bonds stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied

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by the Corporation with due authority to another capital purpose; and

- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of mortgages bonds stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and
(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charged and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation or other similar fund (hereinafter referred to as the "lending fund") and not for the time being required

and those moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

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(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) Interest shall be paid out of the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of mortgages bonds stock or other securities of the Corporation shall continue in force.

(6) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

(7) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

72.—(1) All money received by the Corporation on account of the revenue of the following undertakings of the Corporation:—

Application
of revenue
and pay-
ment of
expenses of
under-
takings.

(1) the water undertaking;

(2) the tramways undertaking;

(3) the electricity undertaking;

(4) the markets undertaking;

(5) the transporter bridge undertaking;

(including any income arising from the investment of any reserve funds authorised by the section of this Act of which the marginal note is “ Reserve funds of certain undertakings ”) shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of those undertakings shall be paid out of that fund.

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(2) The Corporation may (if they think fit) apply money received by them on account of the revenue of any of the said undertakings in paying off moneys borrowed for the purposes of the undertaking or (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners) in the construction renewal extension and improvement of the works and conveniences for the purposes of the undertaking or in the provision of funds for working capital for the undertaking.

Reserve
funds of
certain un-
dertakings.

73.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the undertakings mentioned in subsection (1) of the section of this Act of which the marginal note is "Application of revenue and payment of expenses of undertakings" by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied under the provisions of section 91 (Use of moneys forming part of sinking and other funds) of the Act of 1925) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding in the case of the water undertaking a sum equal to one-tenth or in the case of the electricity undertaking and the markets undertaking a sum equal to one-fifth of the aggregate capital expended for the time being by the Corporation upon such undertakings respectively.

(2) Any reserve fund or renewals or contingency or depreciation fund which has been formed for the purposes of any of the said undertakings and which is in existence at the passing of this Act shall be deemed to have been formed under this section.

(3) The Corporation shall in every year so long as any reserve fund formed under this section is less than the maximum prescribed by or under this section pay into that fund out of the general rate fund interest on any moneys for the time being standing to the credit of the reserve fund and invested in statutory securities at the rate of four per centum per annum or in the case of the electricity undertaking a sum equal to the amount of the interest received in any year from such investment of the electricity reserve fund.

(4) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time hap-

pening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

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—

(5) Resort may be had to a reserve fund formed under the foregoing provisions of this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

74. Nothing in this Act shall be deemed to authorise the Corporation to apply or dispose of the net surplus revenue and the annual proceeds of the reserve fund (when amounting to the prescribed limit) of the electricity undertaking otherwise than in accordance with the provisions of section 43 of and the Fifth Schedule to the Electricity (Supply) Act 1926.

As to
revenue and
reserve fund
of electricity
under-
taking.

75. Subject to the provisions of this Act the trolley vehicle undertaking authorised by this Act shall be deemed to form part of the tramway undertaking of the Corporation. Provided that in the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with trolley vehicles shall (so far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking and in such accounts capital shall be distinguished from revenue.

Trolley
vehicles to
form part of
tramway
under-
taking.

PART VII.

MISCELLANEOUS.

76.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consent under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they

Inquiries by
Minister.

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A.D. 1930. — may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

Inquiries by
Minister of
Transport.

77. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words " under the seal of the Minister of Transport " were substituted for the words " by writing under the hand of the President or of one of the secretaries of the Board."

Works
below high-
water mark
to be
subject to
approval
of Board of
Trade.

78.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Crown
rights.

79. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere

with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

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80. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the Corporation under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution or order of the Corporation or any resolution order or report of any committee of the Corporation a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of appointments authority &c.

81. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply for the purposes of any enactment for the time being in force within the borough.

Application of section 265 of Public Health Act 1875.

82.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by

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A.D. 1930. — post addressed to the secretary of the company at their registered office or at their principal office or place of business.

Several
sums in one
summons.

83. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Incorporation of general sections of Acts of 1906 1914 and 1925.

84. The following provisions of the Act of 1906 the Act of 1914 and the Act of 1925 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if they were re-enacted in this Act with any necessary modifications :—

Act of 1906—

- Section 50 (Informations by whom to be laid);
- Section 52 (As to appeal);
- Section 54 (Damages and charges to be settled by justices);
- Section 55 (Penalties to be paid to treasurer);
- Section 56 (Recovery of penalties);
- Section 57 (Compensation &c. how to be determined);
- Section 58 (Saving for indictment);
- Section 59 (Judges &c. not disqualified);
- Section 61 (Powers of Act cumulative).

Act of 1914—

- Section 68 (Recovery of demands).

Act of 1925—

- Section 121 (Expenses incurred by the Corporation).

Repeal.

85. The following provisions of the Act of 1888 the Act of 1889 and the Act of 1925 are hereby repealed :—

Act of 1888—

- Section 65 (Power to re-borrow).

Act of 1889—

- Section 151 (Power to re-borrow).

Act of 1925—

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Section 109 (Revenue and expenses of trading undertakings);

Paragraph (e) of subsection (1) and subsections (2) and (3) of section 110 (Separate accounts in respect of trading undertakings).

86. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

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The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

AN AGREEMENT made the third day of March One thousand nine hundred and thirty between THE GREAT WESTERN RAILWAY COMPANY (hereinafter called "the Company") of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF NEWPORT (hereinafter called "the Corporation") of the other part.

WHEREAS the Company are the owners of the Monmouthshire Canal (hereinafter called "the canal") and of the railways known as the Monmouthshire (Eastern Valleys) Railway and the Monmouthshire (Western Valleys) Railway :

And whereas the Corporation are desirous of constructing a new road and other works within the borough and for that purpose have applied to the Company for their consent to the closing of a portion of the canal and the deviation of a portion of the first mentioned railway and the abandonment of a portion of the second mentioned railway and to the utilisation of the site or portion or portions thereof for the purpose of the said new road and works :

It is hereby agreed as follows :—

1. The Corporation shall promote and use their best endeavours in the session of Parliament of 1930 to procure the passing into law of an Act for the following purposes :—

- (1) The stopping up and abandonment of so much of the canal as lies between its termination near Llanarth Street and a point ten yards east of its junction with the Crumlin branch of the canal at Malpas :
- (2) The deviation of a portion of the Company's Monmouthshire (Eastern Valleys) Railway (hereinafter called "the existing railway") to the position shown in red upon the plan hereto attached and the transfer to and vesting in the Corporation of so much of the site of the deviated portion thereof as will not form part of the deviation of railway and the sidings and works in connection therewith and will be required for the construction by the Corporation of the said new road :

(3) The extinguishment of all public rights of way and navigation and other rights and easements whether public or private in or over the said portion of canal so abandoned : A.D. 1930.

(4) The repayment to the Company of the sum of £4,310 expended by them upon the provision of cattle pens and siding accommodation in connection therewith at East Usk if within two years from the first January one thousand nine hundred and thirty the Corporation have not erected or commenced to erect and subsequently completed and opened a public abattoir on land at East Usk near to the Corporation's refuse destructor If at any time after the payment of the said sum the Corporation shall erect and open a public abattoir at the said place the Company shall refund the amount to the Corporation unless prior to such erection and opening the Company shall have removed the cattle pens or the siding accommodation in connection therewith after having given to the Corporation six months' previous notice in writing of their intention so to do Provided that if before the expiration of such notice the Corporation commence and with all reasonable despatch thereafter complete the erection of the said abattoir the Company shall refund to the Corporation the said sum upon the opening of the abattoir :

(5) The confirmation of this agreement.

2. The Corporation shall after the said portion of canal shall have been abandoned construct with all reasonable despatch the following works together with all necessary weirs settling tanks inspection chambers and other works viz. (1) a cast iron pipe of an internal diameter of three feet on or under the part of the site of the said portion of canal which is situate between a point immediately north of the bridge carrying High Street over the canal and the said termination of the canal to preserve the flow of water from the canal immediately above the said point to the said termination of the canal and (2) an overflow weir at or near the inlet of the above mentioned pipe together with a cast iron pipe of an internal diameter of three feet to take the overflow of water to the river Usk and all necessary apparatus to control the flow of water through the existing by-pass.

The said pipes shall where laid on the property of the Company be surrounded by concrete of a thickness of six inches measured from the outside of the pipes and shall be laid on a bed of concrete of a thickness of nine inches and of a width to be agreed between the parties or determined by arbitration The Company shall remove from the said portion of canal all

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A.D. 1930. coping stone and such bridges as may be agreed and the Company shall have the right to remove all permanent way materials from the branch railway to be abandoned as hereinafter provided. The Corporation shall make the necessary arrangements for dealing with the drainage which now passes into the said portion of canal and also make such connections and other works as may be necessary to continue the supplies of water now taken by the Company and by any other persons who have heretofore taken supplies of water from the said portion of canal.

3. The works to be constructed by the Corporation mentioned in the last preceding paragraph shall be the property of and shall be maintained by the Company and the Corporation shall repay to them all the expenses properly incurred in such maintenance.

4. So soon as the above mentioned works have been completed the Corporation shall construct (but up to formation level only) a deviation of the existing railway between a point at or near the south-eastern end of the bridge carrying High Street over that railway and a point at or near the north-eastern end of Llanarth Street in accordance with the said plan. The Company shall thereupon forthwith proceed with all reasonable despatch to (1) complete the deviation of railway including if required the footbridge shewn on the said plan and the construction and laying down of the new junctions and sidings shown thereon including all works incidental thereto and (2) construct and lay down such further junctions sidings footbridges and other works as the Company may be called upon to construct or lay down in order to reinstate any sidings between the existing railway and any adjacent wharves or works or facilities for crossing the railway which may be removed or interfered with in the construction of the deviation of railway and the Corporation shall repay to the Company the expenses properly incurred in so doing.

5. Upon the completion and opening for traffic of the deviation of railway the same and the said junctions and sidings (including so much of the site thereof as is not already the property of the Company) shall vest in the Company and thereupon the Company shall abandon the existing railway between the commencement and termination of the deviation of railway and also the portion of the branch railway of the Monmouthshire (Western Valleys) Railway lying between Dock Street and the point of connection of that railway with the existing railway and the lands forming the site of so much of the respective portions of (i) the existing railway (other than any part thereof which will form part of the deviation of railway) and (ii) the branch railway so abandoned as will be

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required for the construction by the Corporation of the new road proposed to be authorised by the said intended Act and is not already the property of the Corporation shall vest in the Corporation and the Company shall grant to the Corporation an easement or right of constructing a bridge to carry the new road over the railway and property of the Company on the southern side of High Street Bridge. A.D. 1930.

6. All the aforesaid works (except so much thereof as are to be constructed by the Company) shall be constructed by the Corporation to the reasonable satisfaction of the Company's engineer and under his superintendence if given and in accordance with detailed plans and sections to be previously submitted to and approved by him and the Corporation shall to the like satisfaction maintain such works except the deviation of railway including its construction up to formation level and other works referred to in article 5 hereof. Provided that if within a period of twelve months from the opening for traffic of the deviated railway the Company find it necessary in consequence of any subsidence or settlement to carry out any works to maintain the level of the deviated railway as originally constructed the Corporation shall repay to the Company the cost further incurred by them.

7. Before the Corporation shall enter upon take or use any of the lands which are by the intended Act to be vested in the Corporation they shall pay to the Company as the price of such lands and of the easement or right above referred to such sum as may be agreed between the Corporation and the Company or in default of agreement as may be determined by an arbitrator to be appointed failing agreement by the President for the time being of the Surveyors' Institute.

8. The Corporation shall as from the date of the closing of the canal relieve the Company of any obligation which they may now be under with regard to Screw Packet Road and shall undertake all the obligations of the Company whether statutory or otherwise in respect of the portion of canal between Llanarth Street and the commencement of the proposed culvert north of High Street Bridge (except such of the said obligations as shall be extinguished by the Act confirming this agreement) and shall at all times thereafter be responsible for and save harmless and indemnify the Company from and against all actions claims losses and expenses in any way arising out of this agreement or the subject matters thereof including claims under the Workmen's Compensation Acts and the Employers' Liability Act.

9. The Corporation shall not require any abstract or evidence of the title of the Company to the lands proposed to be vested in the Corporation by the intended Act other than a statutory declaration to be made if required by some official of the

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A.D. 1930. Company that the Company has for upwards of twenty years last past been in the exclusive occupation and possession of the said lands for the purposes of the said railways subject to the provisions of the Acts relating thereto.

10. Except as otherwise provided by article 7 hereof any difference which may arise between the parties under this agreement shall be referred to and settled by an arbitrator to be agreed upon or failing agreement appointed by the President for the time being of the Institution of Civil Engineers upon the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

11. This agreement is subject to such alterations as Parliament may think proper to make therein but if the Committee of either House on the Bill for an Act to sanction this agreement makes any material alteration in this agreement or in the Bill so far as it relates to the subject matter of this agreement it shall be competent for either party hereto to withdraw from this agreement.

12. If this agreement shall not be confirmed by Parliament (subject as aforesaid) in the session of 1930 then this agreement shall be void.

In witness whereof the Company and the Corporation have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Great Western Railway Company was hereunto affixed in the presence of

F. R. E. DAVIS Secretary.

The common seal of the Corporation was hereunto affixed in pursuance of a resolution by the council by

ARTHUR J. SPEAR Deputy Town Clerk.

THE SECOND SCHEDULE.

A.D. 1930.

PROPERTIES WHEREOF PORTIONS ONLY MAY BE TAKEN.

Number on deposited plan.						Description of property.
4	-	-	-	-	-	House garden stable and premises.
14	-	-	-	-	-	Passage.
15 16 17 18 19 20	-	-	-	-	-	Forecourt and cellar.
21	-	-	-	-	-	Passage.
22 23 24 25 26	-	-	-	-	-	Forecourt and cellar.
27	-	-	-	-	-	Forecourt cellar and garden.
30	-	-	-	-	-	Forecourt.
34	-	-	-	-	-	Forecourt (entrance to garage).
35 36 37	-	-	-	-	-	Forecourt and retaining wall.
38	-	-	-	-	-	Forecourt garden and retaining wall.
39 47	-	-	-	-	-	Occupation road.
48 49	-	-	-	-	-	Forecourt retaining wall and steps.
50	-	-	-	-	-	Builders' yard and retaining wall.
51 52 53 54 55 56 57 58	-	-	-	-	-	Forecourt retaining wall and steps.
61 62 63 64 65 66 67 68 69 70	-	-	-	-	-	Forecourt.
71 72 73 74 75 76 77 78 79 80	-	-	-	-	-	Forecourt and retaining wall.
81 82.	-	-	-	-	-	
84	-	-	-	-	-	Forecourt.
85	-	-	-	-	-	Public park retaining wall and entrance gates (Beechwood Park).
87	-	-	-	-	-	Forecourt retaining wall entrance steps and steps to basement (Beechwood Park Presbyterian Church).
88 89 90 91 93 94 95 96	-	-	-	-	-	Forecourt.
97	-	-	-	-	-	Forecourt petrol pumps tank pipes and works.
100 101 102 103 104 105 106	-	-	-	-	-	Forecourt.
107 109 110 111.	-	-	-	-	-	
112	-	-	-	-	-	Forecourt cables wires works and retaining walls (repeater station).
114 115 116 117 118 119 120	-	-	-	-	-	Forecourt.
125	-	-	-	-	-	Forecourt and pillars.
126	-	-	-	-	-	Forecourt.
127	-	-	-	-	-	Forecourt and retaining wall.
130	-	-	-	-	-	Garden and retaining wall.

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A.D. 1930.	Number on deposited plan.	Description of property.
	133 134 135 136 137 138 139 140 141 142 143.	Forecourt and retaining wall.
	144 145 146 147 148 150 151 152 153 154.	Forecourt steps and retaining wall.
	156 157 158 159 160 161 162 163.	Forecourt.
	174 - - - - -	Forecourt retaining wall and entrance gates (Seventh Day Adventist Church).
	176 177 178 179 180 181 182 183.	Forecourt and retaining wall.
	184 185 186 187 189 190 191 192 193 194 195 196 197 198 199 202 203 204 205 206 207.	Forecourt.
	209 - - - - -	Forecourt summer house and retaining wall.
	210 - - - - -	Forecourt and retaining wall.
	211 212 213 214 215 216 -	Forecourt.
	217 - - - - -	Forecourt and retaining wall (police station and public library).
	218 - - - - -	Forecourt (fire station).
	219 220 221 222 223 224 225 226 227.	Forecourt.
	243 - - - - -	Public park entrance gates roadways and retaining walls.
	244 - - - - -	Allotments and retaining wall.
	247 - - - - -	Forecourt to hospital grounds entrance gates roadways and retaining walls.
	249 250 252 253 254 255 -	Forecourt.
	259 - - - - -	Disused railway works level crossing telegraph and telephone posts and wires.
	261 - - - - -	Roadway.
	262 - - - - -	Engineering works appurtenances and railway siding.
	263 - - - - -	Roadway and gate.
	269 - - - - -	Public road and level crossings.
	270 - - - - -	Railway and works level crossings public footbridge telegraph and telephone posts and wires.
	272 - - - - -	Electricity works yard railways and appurtenances.
	273 - - - - -	Corporation yard and premises.
	275 - - - - -	Disused timber yard drying shed railways and premises.

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Number on deposited plan.						Description of property.	A.D. 1930.
281	-	-	-	-	-	Yard garage tanks petrol pumps stores and premises.	
283	-	-	-	-	-	Marine stores warehouse yard and premises.	
285	-	-	-	-	-	Passageway.	
286	-	-	-	-	-	Timber yard drying sheds offices and premises.	
287	-	-	-	-	-	Wharf railways warehouse and premises telegraph and telephone posts and wires (Liverpool Wharf).	
288	-	-	-	-	-	Wharf railways office and premises telegraph and telephone posts and wires (Liverpool and Blaenavon Wharf).	
289	-	-	-	-	-	Disused canal waterway towing paths banks bridges locks weirs flood gates sluices penstocks wharves quays landing places and other works.	
290	291	292	293	-	-	Wharf and railways.	
294	-	-	-	-	-	Wharf railways and Town Pill.	
296	-	-	-	-	-	Wharf timber yard drying sheds railways and dock dam and Town Pill.	
297	-	-	-	-	-	Drawbridge and turntable.	
298	-	-	-	-	-	Overbridge.	
299	-	-	-	-	-	Office.	
300	-	-	-	-	-	Cottage yard and premises.	
301	-	-	-	-	-	Warehouse (Old Forge).	
303A	-	-	-	-	-	Offices show rooms warehouse wharf yard and premises.	
304	-	-	-	-	-	Occupation road.	

THE THIRD SCHEDULE.

PROVISIONS AS TO BONDS.

1. Bonds shall be secured on all the revenues of the Corporation.

2. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than five years as the Corporation may determine.

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3.—(a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

4. Bonds shall be repayable at par (unless previously cancelled by purchase in the open market or by agreement with the bondholder) at the Town Hall Newport on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

5.—(1) The treasurer shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars :—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided ;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

6.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

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(5) A certificate shall be in the following form or in a form substantially to the like effect :— A.D. 1930.

No.

COUNTY BOROUGH OF NEWPORT.

Newport Corporation Bonds.

..... per centum Newport Corporation bond repayable at par
19 at the Town Hall Newport.

This is to certify that _____ of
is the registered holder of a Corporation bond for
pounds (£ _____) issued by the mayor aldermen and burgesses
of the borough of Newport under the Newport Corporation (No. 1)
Act 1930 at _____ (Signed)

Borough Treasurer.

Date

7. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

8.—(1) The transfer of a Corporation bond shall be by deed in the following form or in a form substantially to the like effect :—

FORM OF DEED OF TRANSFER.

Newport Corporation Bonds.

I _____ in consideration of the sum of _____
paid by _____
(hereinafter called " the transferee ") do hereby assign and transfer
to the said transferee :—

To hold unto the transferee his executors administrators and assigns subject to the several conditions on which I held the same immediately before the execution hereof and I the said transferee do hereby agree to accept and take the said
subject to the conditions aforesaid.

As witness our hands and seals this _____ day of _____
nineteen hundred and _____.

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by the Corporation and the Corporation shall enter a note thereof in a book to be called the " Register of transfers of Newport Corporation bonds " and shall endorse on the deed of transfer a notice of that entry.

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A.D. 1930.

(4) The Corporation shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Corporation as aforesaid the Corporation shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

9. The Corporation may close the register for a period not exceeding thirty days immediately before the thirty-first day of March and the thirtieth day of September in any year respectively and notwithstanding the receipt by the Corporation during those periods of any deed of transfer the half-yearly payment of interest next falling due may be made to the persons registered as holders of bonds on the date of the closing of the register.

10.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require and on complying with any requirement of the Corporation under the section of Part IX of the foregoing Act of which the marginal note is "Evidence of transfer or transmission of securities" either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

11.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown in the register.

(2) The posting by the Corporation of a letter containing an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

12. The Corporation shall not be required to pay any executors or administrators any interest on bonds held by their testator

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or intestate until the probate of the will or the letters of administration has or have been left with the Corporation for registration. A.D. 1930.
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13. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

14. Where more persons than one are registered as joint holders of a bond any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation by any other of them.

15. No notice of any trust shall be entered in the register or in any other book kept by the Corporation or be receivable by the Corporation.

16.—(1) If at any time any interest due on any bonds remains unpaid for two months after demand in writing the persons entitled thereto may apply to the High Court for the appointment of a receiver and the court may if it thinks fit appoint a receiver on such terms as it thinks fit.

(2) The receiver shall have the like power of collecting receiving recovering and applying moneys and of assessing making and recovering all rates for the purpose of obtaining the same as the Corporation or any other officer thereof would or might have and such other powers and duties as the court thinks fit and shall apply all moneys so collected and received after paying all such costs as the court may direct for the purposes of this Act.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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